



Tribunals Ontario

Landlord and Tenant Board

Form N12

Notice to End your Tenancy Because the Landlord, a Purchaser or a Family Member Requires the Rental Unit

Instructions

- **Section A:** When to use this notice [p. 1](#)
- **Section B:** Information about compensation [p. 1](#)
- **Section C:** How to complete this notice [p. 2](#)
- **Section D:** How to give this notice to your tenant [p. 3](#)
- **Section E:** What happens after you give this notice [p. 3](#)
- **Section F:** What to do if you have any questions [p. 4](#)

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When to use this notice

You can give this notice to the tenant for either of the following reasons:

- **Reason 1:** You, a member of your immediate family or a person who provides or will provide care services to you or a member of your immediate family wants to move into the rental unit and occupy it for at least one year.
- **Reason 2:** The purchaser, a member of the purchaser's immediate family or a person who provides or will provide care services to the purchaser or a member of the purchaser's immediate family wants to move into the rental unit, and,
 - the complex contains no more than three residential units, and,
 - you have entered into an agreement of purchase and sale of the complex.

Giving this notice is the first step in evicting a tenant for the above reasons. See [Section D](#) below for information about what happens after you give this notice to your tenant.

You cannot give this notice for any of the above reasons if:

- the complex has been converted to a condominium and the tenant lived in the rental unit on the date the complex was registered as a condominium, the complex is proposed to be converted to a condominium and the tenant lived in the rental unit on the day the agreement of purchase and sale was entered into.
- the complex was severed and the tenant lived in the rental unit at the time consent to the severance was given under the *Planning Act*.
- the complex is an equity co-op (even if the landlord or the purchaser has a tenancy or occupancy agreement entitling them to occupy the rental unit), unless:
 - the building contains four or fewer residential units, or
 - the landlord or a member of their immediate family used to live on the premises.

Information about compensation

You must either pay the tenant an amount equal to one month's rent as compensation or offer the tenant another rental unit that is acceptable to them.

If you pay the tenant compensation it must be paid on or before the termination date in the notice.

Read these instructions before completing the notice. You are responsible for ensuring that your notice is correct and complete. Follow the instructions carefully when you complete the notice. If you do not complete the form properly, your notice may not be valid and you may have to start over.

Under **To**, fill in the name of the tenant to whom you want to give the notice. If there is more than one tenant living in the rental unit, fill in the names of all of the tenants. Where there is a subtenant or assignee, you should name these people in the notice. However, you do not need to name other occupants, such as children or guests of the tenant.

Under **From**, fill in your name. If there is more than one landlord, fill in the names of all of the landlords. Note: You can only give this notice if you are an individual; a corporation who owns a rental unit cannot give a notice of termination for this reason.

Under **Address of the Rental Unit**, fill in the complete address of the rental unit, including the unit number (or apartment or suite number) and the postal code.

The Termination Date

Fill in the termination date. The termination date must be at least **60 days** after the date that you give the tenant this notice. Also, the date must be on the last day of the rental period or, if the tenancy is for a fixed term, the last day of the fixed term.

Once you have given this notice to the tenant, the tenant may end the tenancy on an earlier date by giving you at least 10 days written notice.

When you are counting the days, do not include the date you are giving the notice to the tenant. If you are **faxing** the notice, it is deemed to be given on the date imprinted on the fax. If you are sending the notice **by courier**, add one business day for delivery. If you are sending the notice **by mail**, add five days for delivery.

Example:

The tenancy is month-to-month and rent is paid on the first of each month. If the landlord decides to give this notice on August 1st, and the landlord is handing the notice to the tenant, the earliest date the landlord could fill in as the termination date is September 30th (60 days from August 1st and falling on the last day of a rental period). If the landlord is mailing the notice to the tenant on August 1st, the earliest date the landlord could fill in as the termination date is October 31st (60 days from August 1st + 5 days for mailing and falling on the last day of the rental period).

My Reason for Ending your Tenancy:

Shade the circle completely next to the reason for giving the tenant this notice. Then shade the box next to the person who intends to move into the rental unit.

Signature:

If you are the landlord, shade the circle marked “Landlord”. If you are the landlord’s representative, shade the circle marked “Representative”. Fill in your name and phone number. Then, sign the notice and fill in the date you sign the notice.

Representative’s Information (if applicable):

If you are the landlord’s representative, fill in your name and phone number. Then, fill in your name, company name (if applicable), and mailing address. Include your phone number and fax number, if you have one.

SECTION**D****How to give this notice to your tenant**

There are many ways that you can give this notice to your tenant. You can:

- hand it directly to the tenant or to an adult in the rental unit,
- leave it in the tenant's mailbox or where mail is ordinarily delivered,
- place it under the door of the rental unit or through a mail slot in the door,
- send it by fax to a fax machine where the tenant carries on business or to a fax machine in their home,
- send it by courier, or
- send it by mail.

You cannot give the tenant this notice by posting it on the door of the tenant’s rental unit.

SECTION**E****What happens after you give this notice**

It is important that you keep a copy of the notice you give your tenant.

You can apply to the Landlord Tenant Board (LTB) for an order to terminate the tenancy immediately after giving the notice to the tenant.

To make this application, you need an [Application to End a Tenancy and Evict a Tenant](#) (Form L2). You will also need to file a copy of the [Notice to End your Tenancy at the End of the Term](#) (Form N12) you gave the tenant, and a [Certificate of Service](#) to tell the LTB when and how you gave the notice to the tenant.

You must apply no later than 30 days after the termination date you put in this notice.

The L2 and the Certificate of Service forms are available at your local LTB office, or from the LTB website at tribunalsontario.ca/ltb.

What to do if you have any questions

You can visit the LTB website at: tribunalsontario.ca/ltb

You can call the LTB at 416-645-8080 from within the Toronto calling area, or toll-free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the LTB's processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.